



CHAPTER xxxvii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Abertillery and District Water Board Barnoldswick Eastbourne Leek Llanelly Nuneaton Paignton and Weston-super-Mare. A.D. 1925.
[30th June 1925.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 : 38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed;

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 2) Act 1925. Short title.

A.D. 1925.

S C H E D U L E.

ABERTILLERY AND DISTRICT WATER BOARD.

*Abertillery
Order.*

*Provisional Order for altering the Abertillery and
District Water Board Act 1910.*

WHEREAS by the Abertillery and District Water Board Act 1910 (hereinafter referred to as "the Local Act") the urban districts of Abertillery Abercarn and Risca and the Sirhowy portion of the urban district of Mynyddislwyn were formed into a united district for the purposes therein mentioned and it was provided by Section 106 of the Local Act that Section 303 of the Public Health Act 1875 should apply to the Abertillery and District Water Board (hereinafter referred to as "the Board") constituted under the Local Act as if it were a local authority ;

And whereas the triennial elections of members of the Abertillery and Abercarn Urban District Councils were postponed during the recent War with the result that the triennial election of members to the Board as provided by the Local Act now occurs one year prior to the elections of the said two Urban District Councils ;

And whereas the Board have made application to the Minister of Health for the issue of a Provisional Order to amend the Local Act in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 (as applied by Section 106 of the Local Act) and all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act shall be amended as follows :—

*Election of
members.*

1.—(1) Notwithstanding anything contained in Section 7 (Election of members) of the Local Act all the members of the Board shall go out of office on the day previous to the annual meeting of the Board in the year One thousand nine hundred and twenty-eight.

(2) As from the fifteenth day of April One thousand nine hundred and twenty-eight Section 7 of the Local Act shall have effect as if the words "One thousand nine hundred and twenty-eight" were substituted for the words "One thousand nine hundred and twelve".

[15 & 16 GEO. 5.] *Ministry of Health* [Ch. xxxvii.]
Provisional Orders Confirmation (No. 2) Act, 1925.

2. This Order may be cited as the Abertillery and District Water Board Order 1925. A.D. 1925.

Given under the Official Seal of the Minister of Health this
Twenty-eighth day of February One thousand nine hundred and twenty-five. Short title.
Abertillery Order.

(L.S.) F. L. TURNER
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF BARNOLDSWICK.

Provisional Order for amending the Barnoldswick Urban District Council Water Act 1915. *Barnoldswick Order.*

WHEREAS the Urban District Council of Barnoldswick (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Barnoldswick;

And whereas by the Barnoldswick Urban District Council Water Act 1915 (hereinafter referred to as "the local Act") the Council were authorised to construct and maintain a reservoir therein referred to as the Elslack Reservoir and other works for the supply of water but by Section 7 a period of ten years from the passing of the local Act was limited for the completion of the said works;

And whereas by Section 9 of the local Act it was further provided that until the completion of the Elslack Reservoir or the expiration of the said period of ten years the Council might take from the Elslack Beck any water they might require subject to the restrictions therein mentioned;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to amend the local Act in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the local Act shall be amended in manner following that is to say:—

1.—(1) Section 7 Section 9 and subsection (1) of Section 77 of the local Act shall have effect and shall be deemed always to have had effect as if the words "fifteen years" had been inserted therein instead of the words "ten years" wherever those words occur. Extension of time for construction of waterworks abstraction of water &c.

[Ch. xxxvii.] *Ministry of Health* [15 & 16 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1925.

A.D. 1925.

Barnoldswick Order.

(2) Subsection (1) of Section 14 of the local Act shall have effect as if the words "after the first day of August One thousand nine hundred and twenty-six" were substituted therein for the words "after the expiration of six years from the passing of this Act."

Rate of
accumula-
tion of
annual pay-
ments to
sinking fund.

2. Section 69 of the local Act shall have effect as if the words "or at such other rate as the Minister of Health may from time to time approve" were inserted in paragraph (b) of subsection (1) of that Section after the words "three pounds per centum per annum."

Short title.

3. This Order may be cited as the Barnoldswick Order 1925.

Given under the Official Seal of the Minister of Health this
Tenth day of February One thousand nine hundred and
twenty-five.

(L.S.)

H. W. S. FRANCIS
 Assistant Secretary Ministry of Health.

BOROUGH OF EASTBOURNE.

Eastbourne Order.

Provisional Order to enable the Eastbourne Corporation to put in force the Compulsory Clauses of the Lands Clauses Acts.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of Eastbourne (hereinafter referred to as "the Corporation") acting by the Council as the local authority for that Borough for the purposes of the Public Health Act 1875 require to purchase and take the lands described in the schedule hereto for the purposes of opening or otherwise improving the streets known as Greys Road and The Greys in the said Borough :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect that is to say :—

Compulsory
powers of
purchase.

1. The Corporation shall be empowered for the purposes aforesaid to put in force with reference to the lands described in the Schedule hereto (subject to the continuance of existing public rights of highway if any) the powers of the Lands Clauses

[15 & 16 GEO. 5.] *Ministry of Health* [Ch. xxxvii.]
Provisional Orders Confirmation (No. 2) Act, 1925.

Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 with respect to the purchase and taking of lands otherwise than by agreement or any of them. A.D. 1925.
Eastbourne Order.

2. This Order may be cited as the Eastbourne Order 1925. Short title.

The SCHEDULE above referred to.

Parish of EASTBOURNE Borough of EASTBOURNE in the
County of EAST SUSSEX.

No. on Plan.	Description.	Owner.	Occupier.
1	A piece of land on which is built a wall surmounted by wrought iron railings situate at the junction of Greys Road and The Greys Eastbourne and containing 3·54 square yards or thereabouts.	Thomas Sutton Clover Cottage 13 South Cliff Eastbourne.	The said Thomas Sutton.
2	A piece of land adjoining the eastern side of the said wall and which is laid out as a shrubbery and containing 10·13 square yards or thereabouts.	Ditto.	Ditto.
The above-mentioned lands are more particularly delineated and coloured pink and green on a plan in duplicate sealed with the Official Seal of the Minister of Health and marked "Plan referred to in the Eastbourne Order 1925" of which duplicate plan one part is deposited in the office of the Minister of Health and the other shall be deposited by the Town Clerk of Eastbourne in his office within fourteen days from the date of this Order.			

Given under the Official Seal of the Minister of Health this
Twenty-third day of February One thousand nine
hundred and twenty-five.

(L.S.) F. L. TURNER
Assistant Secretary Ministry of Health.

[Ch. xxxvii.] *Ministry of Health* [15. & 16. Geo. 5.]
Provisional Orders Confirmation (No. 2) Act, 1925.

A.D. 1925.

URBAN DISTRICT OF LEEK.

Leek Order.

*Provisional Order for amending a Provisional Order
confirmed by Parliament.*

WHEREAS the Urban District Council of Leek (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Leek (hereinafter referred to as "the District");

And whereas there are in force in the District the unrepealed provisions of the Leek Improvement Act 1855 (hereinafter referred to as "the Local Act") as amended by the Leek Order 1878 the Leek Order 1920 and other Provisional Orders (not material to the purposes of the present Order) which were duly confirmed by Parliament;

And whereas by the Local Act as amended by the Leek Order 1878 the Council were authorised to borrow certain moneys subject to the conditions as to repayment therein contained and by the Leek Order 1920 the Council were authorised to borrow further moneys subject to other conditions as to repayment;

And whereas it is desirable that the Council should be authorised to borrow additional moneys subject to the conditions of repayment specified in the Leek Order 1920 and that doubts should be removed as to the application of such Order and conditions to certain moneys borrowed after the confirmation of such Order by virtue of sanctions duly issued under the Local Act as amended by the Leek Order 1878;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to amend the Leek Order 1920 in manner hereinafter appearing:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 297 and 303 of the Public Health Act 1875 and of any other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Leek Order 1920 shall be amended as follows that is to say:—

Additional
borrowing
powers.

1. Article II. of the Leek Order 1920 shall have effect as if the sum of One hundred and twenty-five thousand pounds had been therein mentioned instead of seventy-five thousand pounds as the amount of the additional moneys which the Council were thereby authorised to borrow after the Fourth day of August One thousand nine hundred and twenty for the purposes of the Local Act:

[15 & 16 GEO. 5.] *Ministry of Health* [Ch. xxxvii.]
Provisional Orders Confirmation (No. 2) Act, 1925.

Provided that any sums borrowed by the Council after the said date under a sanction issued prior thereto shall be deemed to have been borrowed under the provisions of the said Order and shall be reckoned as part of the said sum of One hundred and twenty-five thousand pounds.

A.D. 1925.

—
Leek Order.

2. This Order may be cited as the Leek Order 1925.

Short title.

Given under the Official Seal of the Minister of Health this
Thirtieth day of January One thousand nine hundred
and twenty-five.

(L.S.)

A. B. MACLACHLAN
Assistant Secretary Ministry of Health.

BOROUGH OF LLANELLY.

*Provisional Order for altering the Llanelly Corporation
Water Act 1920.*

*Llanelly
Order.*

WHEREAS the Borough of Llanelly (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban Authority for the purposes of the Public Health Act 1875 and the provisions of the Llanelly Corporation Water Act 1920 (hereinafter referred to as "the Local Act") are in force in the Borough;

And whereas by Section 10 of the Local Act a period of five years from the Sixteenth day of August One thousand nine hundred and twenty was limited for the completion of the new works authorised by that Act;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to amend the Local Act in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act shall be amended as follows:—

1. Section 10 (Period for completion of new works) of the Local Act shall have effect as if the words "eight years" had been inserted therein instead of the words "five years."

Extension
of time for
completion
of works.

[Ch. xxxvii.] *Ministry of Health* [15 & 16 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1925.

A.D. 1925. 2. This Order may be cited as the Llanelly Order 1924 and
the Llanelly Water Acts 1865 to 1920 and this Order may be
cited together as the Llanelly Water Acts and Order 1865 to
1924.

*Llanelly
Order.*
Short title.

Given under the Official Seal of the Minister of Health
this Nineteenth day of September One thousand nine
hundred and twenty-four.

(L.S.)

A. B. MACLACHLAN
Assistant Secretary Ministry of Health.

BOROUGH OF NUNEATON.

*Nuneaton
Order.* *Provisional Order for amending the Nuneaton Corporation
Act 1921.*

WHEREAS the Borough of Nuneaton (hereinafter referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Local Authority for the purposes of the Public Health Act 1875 and there are in force in the Borough the unrepealed provisions of the Nuneaton Corporation Acts 1919 and 1921 (hereinafter referred to as "the Act of 1919" and "the Act of 1921" respectively);

And whereas by Part IV. of the Act of 1921 provision was made for the consolidation of rates in the Borough which is coterminous with the parish of Nuneaton;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to amend the Act of 1921 in manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Act of 1921 shall be amended in the manner following (that is to say):—

Discount
for prompt
payment of
consolidated
rate.

1.—(1) The Corporation may if they think fit direct the Overseers of the parish to allow a deduction by way of discount not exceeding five per centum in any case from the amount payable in respect of any consolidated rate or any instalment thereof by any person who shall pay the same within such period after the date on which the rate is made or after the receipt by him of the demand note in respect of the rate or after the date on which the instalment shall fall due as the case may be as the Corporation may prescribe and in every case the Overseers shall make such deduction accordingly:

[15 & 16 GEO. 5.] *Ministry of Health* [Ch. xxxvii.]
Provisional Orders Confirmation (No. 2) Act, 1925.

Provided that such deduction shall in respect of each half-yearly rate be in every case an equivalent amount in like circumstances.

A.D. 1925.

—
*Nuneaton
Order.*

(2) A printed notice stating the amount of the discount for the time being allowable and the period prescribed for the purposes of this Article shall form part of or be affixed to each demand note issued for any consolidated rate in respect of which sub-division (1) of this Article applies.

2. Subsection (2) of Section 84 of the Act of 1919 shall apply to the service of demand notes issued by the Overseers in respect of any consolidated rate or any instalment or arrears thereof.

Service of
demand
notes for
rates.

3. This Order may be cited as the Nuneaton Order 1925.

Short title.

Given under the Official Seal of the Minister of Health
this Tenth day of February One thousand nine hundred
and twenty-five.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

URBAN DISTRICT OF PAIGNTON.

*Provisional Order for altering and amending the
Paignton Improvement Act 1898.*

*Paignton
Order.*

WHEREAS the Urban District Council of Paignton (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Paignton (hereinafter referred to as "the District");

And whereas the unrepealed provisions of the Paignton Improvement Act 1898 (hereinafter referred to as "the Act of 1898") are in force in the District;

61 & 62 Vict.
c. cclvii.

And whereas by Part III. of the Act of 1898 certain powers were conferred upon the Council with respect to the provision of music within their district;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to alter and amend the Act of 1898 in the manner hereinafter set forth:

Now therefore the Minister of Health in pursuance of his powers under Section 303 of the Public Health Act 1875 and of any other Statutes in that behalf doth hereby order that from and after the date of the Act of Parliament confirming this Order

[Ch. xxxvii.] Ministry of Health [15 & 16 Geo. 5.]
Provisional Orders Confirmation (No. 2) Act, 1925.

A.D. 1925. the Act of 1898 shall be altered and amended so that the following provisions shall have effect viz. :—

Paignton Order.

Provision of entertainments.

Charges for admission.

Letting of buildings.

Programmes.

Advertising entertainments.

Byelaws.

1.—(a) The Council may provide or arrange for the provision of entertainments in any building belonging or leased to them.

(b) For the purposes above-mentioned the Council may—

(i) make such charges as they may think fit for admission to any such building or to any part thereof whilst being used for any such entertainment and for the use of chairs and other seats provided in connection with entertainments;

(ii) let any such building or any part thereof to any person for the purpose of entertainments and authorise such person to make charges for admission thereto;

(iii) provide and sell or authorise the provision and sale of programmes and refreshments at or in connection with any such entertainment;

(iv) advertise any such entertainment by notices posted or distributed within the District or printed in any newspaper published within the District;

(v) make and enforce byelaws or regulations for securing good and orderly conduct during any such entertainment.

(c) For the purposes of this Article “entertainments” includes concerts plays performances dances shows exhibitions competitions lectures and other amusements.

Expenses.

2. Any expenses incurred by the Council in exercising the powers given to them by this Order shall be paid out of the district fund and general district rate of the District and all moneys received by the Council in exercising those powers shall be carried to the credit of the said district fund :

Limitation of expenditure.

Provided always that the net amount of any payments or contributions made by the Council for the purposes aforesaid after deducting any moneys received by them in pursuance of this Order shall not in respect of any one year exceed the sum which would be produced by a rate of one penny in the pound on the assessable value for the time being of the District for the purposes of the general district rate.

Short title.

3. This Order may be cited as the Paignton Order 1924.

Given under the Official Seal of the Minister of Health this
 First day of December One thousand nine hundred and
 twenty-four.

(L.S.)

F. L. TURNER
 Assistant Secretary Ministry of Health.

URBAN DISTRICT OF WESTON-SUPER-MARE.

A.D. 1925.

*Provisional Order for altering the Weston-super-Mare
Improvement Act 1887 and the Weston-super-Mare
Urban District Council Act 1914.*

—
*Weston-
super-Mare
Order.*

WHEREAS the Urban District Council of Weston-super-Mare (hereinafter referred to as "the Council") are the local authority for the purposes of the Public Health Act 1875 for the Urban District of Weston-super-Mare (hereinafter referred to as "the District") and there are in force in the District the unrepealed provisions of the Weston-super-Mare Improvement Act 1887 and the Weston-super-Mare Urban District Council Act 1914 (each of which Acts is hereinafter referred to as the Act of the year in which it was passed and both of which Acts are hereinafter together referred to as "the Local Acts");

And whereas by Section 91 of the Act of 1914 the Council were subject as therein provided authorised to construct and maintain on the seashore such promenades walls and other works as they might think necessary for the improvement or protection of the sea front;

And whereas by Sections 79 and 149 of the Act of 1887 as amended or extended by Sections 93 and 129 of the Act of 1914 the Council were authorised to make byelaws as to the user of the seashore and parades;

And whereas by Section 99 of the Act of 1914 the Council were authorised to borrow certain sums of money for the purposes mentioned in subsection (1) of that section and with the approval of the Local Government Board such further moneys as might be necessary for any purposes of that Act;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order to alter the Local Acts in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect that is to say :—

1.—(1) The Council may by agreement acquire or take on lease any part of the seashore beach or foreshore within the District and construct thereon in accordance with such plans and sections as may be approved by the Minister of Health and maintain—

Marine lake
bathing pool
and parade
widening.

(a) a sea wall marine lake and bathing pool in Glentworth Bay; and

(b) a widening of the Marine Parade;

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Provisional Orders Confirmation (No. 2) Act, 1925.

A.D. 1925.

*Weston-
super-Mare
Order.*

Charges for
use of
marine lake
and bathing
pool &c. and
letting of
works &c.

Pleasure
boats &c. on
or in connec-
tion with
marine lake
and bathing
pool &c.

Byelaws.

together with such works appliances and conveniences as may be necessary or proper in connection with the said works and such other buildings as may be approved by the Minister of Health.

(2) The Council may make such reasonable charges as they think fit for the admission to and use of the marine lake and bathing pool or any part thereof or any works appliances or conveniences provided in connection therewith or any other buildings erected with the approval of the Minister of Health or the Council may lease the same or any of them together with their right to make charges in respect thereof for such period and on such conditions as they think fit.

(3) The Council may either themselves provide and let for hire or may license any person to let for hire pleasure boats bathing machines tents shelters and other conveniences on or in connection with the marine lake and bathing pool and other works authorised by this Order.

2.—(1) The Council may make byelaws—

(a) providing for and regulating the numbering of pleasure boats bathing machines shelters and tents to be used on or in connection with the marine lake and bathing pool the numbers and classes of persons to be carried therein or to use the same at any one time the maximum rates chargeable for the use thereof the qualifications and conduct of boatmen and the use of boathouses mooring places and storage accommodation; and

(b) for regulating generally the use of the marine lake and bathing pool and any works appliances and conveniences connected therewith and for the prevention of injury or damage thereto.

(2) The provisions of Section 129 of the Act of 1914 with respect to byelaws made by the Council under the powers of that Act shall apply to the byelaws made under this Article.

Borrowing
powers.

3. The purposes of this Order shall be deemed to be purposes of the Act of 1914 for which the Council with the approval of the Minister of Health may borrow money under Section 99 of that Act.

Application
of revenue
of marine
lake and
bathing pool.

4.—(1) The Council shall keep the accounts in respect of their marine lake and bathing pool undertaking separate from their other accounts distinguishing therein capital from revenue and shall apply the moneys from time to time received by them by way of revenue from such undertaking in each year in the following manner and for the following purposes that is to say:—

Firstly—In payment of the working and establishment expenses of the undertaking and the cost of maintenance of the same:

[15 & 16 GEO. 5.] *Ministry of Health* [Ch. xxxvii.]
Provisional Orders Confirmation (No. 2) Act, 1925.

Secondly—In payment of the interest on moneys borrowed or re-borrowed for the purposes of the undertaking : A.D. 1925.

Thirdly—In providing for the discharge of the moneys borrowed or re-borrowed for the purposes of the undertaking in accordance with the provisions of the Acts or Orders which are applicable thereto : *Weston-super-Mare Order.*

Fourthly—In extending and improving (if the Council think fit) any permanent works in connection with and for the purposes of the undertaking :

Fifthly—In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the reserve fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to meet any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if the fund at any time be reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens. Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the district fund of the District so much of any balance remaining in any year of the moneys received by way of revenue from the undertaking (including the interest on the reserve fund when that fund amounts to the prescribed maximum) as may in their opinion not be required for the purposes thereof and for paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the undertaking shall be forthwith made good out of the district fund and general district rate of the District.

(3) For the purposes of this Article the expression "statutory securities" means securities in which trustees are by law for the time being authorised to invest and mortgages bonds debentures debenture stock stock or other securities duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but does not include annuity certificates securities payable to bearer or any securities of the Council.

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Provisional Orders Confirmation (No. 2) Act, 1925.

A.D. 1925.

—
*Weston-
super-Mare
Order.*

Postpone-
ment of
sinking fund
for repay-
ments.

Inquiries
and ex-
penses.

5. Notwithstanding anything in this or any other Order or any Act of Parliament it shall not be obligatory upon the Council to pay the first instalment of principal or to make the first payment to a sinking fund for the repayment of money borrowed under the provisions of this Order until the works authorised by this Order are brought into use or until the expiration of three years from the date or dates of borrowing whichever shall first occur.

6.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary with reference to the purposes of this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purpose of inquiries directed by the Minister under the Public Health Act 1875.

(2) Where the Minister of Health causes any such inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Minister in relation to that inquiry (including such sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Minister engaged in the inquiry) shall be paid by the Council and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Council shall be a debt due to the Crown from the Council.

Works below
high-water
mark to be
subject to
approval of
Board of
Trade.

7.—(1) Subject to the provisions of this Order any works authorised by this Order shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides in accordance with plans and sections approved by the Board of Trade under the hand of one of the Secretaries or Assistant Secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this Article the Board of Trade may abate and remove the same and restore the site thereof to the former condition at the cost of the Council and the amount of such cost shall be a debt due from the Council to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Crown
rights.

8. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land

[15 & 16 GEO. 5.] *Ministry of Health* [Ch. xxxvii.]
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hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

A.D. 1925.

—
*Weston-
super-Mare
Order.*

9. This Order may be cited as the Weston-super-Mare Order 1925. Short title.

Given under the Official Seal of the Minister of Health this
Nineteenth day of February One thousand nine
hundred and twenty-five.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

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